

REQUEST FOR PROPOSAL (RFP)

For

**Providing housekeeping services at the Group Centres of
Prohibition, Excise & Registration Department**

Tender No: Housekeeping/Excise/2023/01

Dated: 09/01/2023

**Prohibition, Excise & Registration Department
Government of Bihar**

1 Introduction

1. The Department of Prohibition, Excise and Registration ("The Department") invites bids from experienced agencies, who are in the field of Housekeeping, cleaning and up keeping works etc. for three group centres of the Department.
2. All proposals submitted in response to the RFP document must be accompanied by an EMD of Rs 2,00,000 (Rupees Two Lakhs Only) in the form of Bank Guarantee in favour of Excise Commissioner Cum I.G. Registration, Account Number – 922020004238912, Branch Name – AXIS Bank Limited Raja Bazar, payable at Patna. Bids submitted without adequate EMD will be liable for rejection.
3. The bidders are expected to examine all instructions, forms, terms, Project requirements and other information in the RFP documents. Failure to furnish all information required as mentioned in the RFP documents or submission of a proposal not substantially responsive to the RFP documents in every respect will be at the Bidder's risk and may result in rejection of the proposal.

2 Schedule of Bid Process

SL#	Information	Details
1.	RFP No. and Date of availability	Housekeeping/Excise/2023/01, Available for download from 09 January 2023, 4:00 PM onwards till 29 January 2023, 4:00 PM
2.	Last date for submission of written queries for clarifications	15 January 2023, 5:00 pm Email: excise-bih@nic.in
3.	Date of pre-bid conference	16 January 2023, 4:00 pm at
4.	Release of response to clarifications	18 January 2023, 5:00 PM
5.	Last date of submission of bid	29 January 2023, 4:00 PM
6.	Opening of Technical Bids	29 January 2023, 4:30 PM
7.	Opening of Financial Bids	To be intimated
7.	Contact person for queries	Shri Krishna Paswan Joint Commissioner Prohibition, Excise and registration Email: Excise-bih@nic.in

3 Scope ofwork

1. The bidder shall provide up keeping, cleaning and housekeeping services at three Group Centres of the Department, located at Patna, Muzaffarpur, and Bhagalpur.
2. The contract will initially be for aperiod of 2 years which may be further extended upon the satisfactory performance of the bidder.
3. The bidder shall provide approximately 20 staffs in 2 shifts at each Group Centre. Each shift will be for 8 hours.Shifts will be as under:

Shift	Timing	No. of Staff required
First Shift	4:00 am to 12:00 pm	10
Second Shift	12:00 pm to 8:00 pm	10

4. Dress code and Identity card is mandatory for all personnel deployed.
5. The bidder shall provide well-trainedstaffs and must comply to the semi-skilled category.
6. The bidder shall maintain punctuality of workers so as to ensure timely completion of housekeeping job daily and shall be responsible for maintaining cleanliness in all the office premises mentioned in the Tender Document.
7. The bidder shall provide all necessary consumables,equipment to perform housekeeping work in the premises of the Group Centres.
8. Minimum age of staff employed for the work should be 18 years and above.
9. The Agency will be responsible for compliance of all statutory provisions relating to Minimum Wages, GST, Provident Fund, Maternity Leave Benefit and Employees State Insurance etc., if applicable in respect of the persons deployed at the Department.
10. The persons deployed shall work as per the timings of the Group Centres in which they are deployed. The persons deployed may be required to attend the office on Holidays or attend office before/ after office working hours based on the exigencies of work for which no additional payment shall be made.
11. The Agency shall depute a coordinator who would be responsible for immediate interaction with the Department so that optimal services of the persons deployed by the Agency could be availed without any disruption.
12. The Agency shall immediately provide a substitute in the event of any person absenting from duty on

any day, leaving the job or is removed within 3 working days otherwise the penalty shall be levied.

13. . The Agency shall furnish the following documents in respect of the individual Manpower who will be deployed at the Department before the commencement of work.
 - a. List of persons deployed
 - b. Biodata of the person
 - c. Attested copy of the Certificates and documents showing age, educational qualifications, and experience
 - d. Character certificate from two Group "A"/ Class-I officers of the Central/State Government.
 - e. Certificate of verification of antecedents of persons by local Police authority.
 - f. Identity Cards bearing photograph
 - g. Aadhar number of the persons deployed (copy of the Aadhar Card maybe provided).
14. The transportation, food, medical and other statutory obligations requirements in respect of each personnel shall be borne by the bidder.
15. The place of jurisdiction shall be Patna, Bihar for handing any disputes arising out of this contract/agreement.
16. The bidder shall be entirely responsible for redressing grievances or resolution of disputes relating to the personnel deployed.
17. The bidder shall ensure that all the personnel deployed by it gets minimum wages and all other benefits admissible under Labour laws Act and shall be responsible for fulfilling obligations towards such personnel deployed under law in force.
18. The bidder shall also arrange to get registered the mobile number of all personnel deployed in the Bihar State Labour Welfare Society with their EPFO ESIC Accounts so that deployed employee persons can be sure about the deposit of their statutory deductions in their respective accounts.
19. The bidder shall not indulge in arbitrary and adhoc transfer or shifting of any of its employees from his/her designated duties without prior consultation with the authorities of the Department.
20. The bidder shall ensure uninterrupted services on all days as per the shift timings but in accordance with the labour laws.
21. It shall be the responsibility of the bidders that antecedents of staffs are verified from local police authority.
22. All liabilities arising out of accident or death while on duty shall be borne by the bidder only.

23. Any damage or loss caused by bidder's persons to the Department in whatever shape, would be recovered from the bidder.
24. In case the personnel deployed by agency commits any misconduct or any disciplinary action, the agency shall be liable to take immediate action against such personnel on the report of the authorized officers of the Department in this respect.
25. The Department can terminate the contract by giving one month notice without assigning any reason thereof. During the notice period for termination of contract, the bidder shall keep on discharging their duties till the expiry of notice period. It is the duty of the bidder to remove all the hardware and personnel deployed on termination of the contract on any ground whatsoever that no one creates any disruption/hindrance/problem of any nature to the Department.

26. The scope of work shall include below ones but not limited to :-

A. Housekeeping services:-

- a) Dusting/polishing of all furnitures etc
- b) Polishing/ vacuum cleaning/cleaning of floors
- c) Cleaning of all toilets and shower changing rooms (wherever applicable)
- d) Cleaning walls, ceilings, internal glass surfaces
- e) Cleaning of internal and external windows
- f) The clearing of gutter roofs to remove debris (wherever applicable)
- g) The removal of graffiti and other stains to the internal/external of premises (wherever applicable)
- h) Cleaning/litter picking of external areas
- i) Bidder needs to conduct housekeeping audit every 6 months through their internal specialists
- j) Only Johnson Diversey or Green Building USGBC Council approved cleaning chemicals must be used as per the Department approval.

B. Routine Cleaning:-

- a) The bidder is required to provide high quality cleaning service.
- b) The bidder shall undertake all tasks normally associated with routine office cleaning to ensure that the offices, toilets, meeting areas, public areas, furniture and floor spaces are maintained to a high level of general cleanliness and remain presentable and fit for their intended purpose.

C. Dusting/Polishing of all furniture, sills: -

- a) All chairs and soft furnishings must be clean, dry and free from dust.
- b) All telephones should be free from dust and smears.
- c) Light fittings must be free from dust.

- d) All blinds and curtains should be free of strains, marks and dust.
- e) All signage, including emergency signage should be clean, dry and free of strains, marks and dust.
- f) Bins must be empty, clean and dry inside and out, bin-liners replaced where necessary and placed in their original locations. Liners should be used in all containers.

D. Polishing /vacuum cleaning/cleaning of floors: -

- All hard floor surfaces must be free from debris, clean, dry and free of stain marks and dust. There must be no evidence of any accumulation of slurry of soaps or residues of other cleaning agents. Floors must be safe and not slippery. The dressing must be complete and intact without evidence of powdering, discoloration or build up. Chewing gum and other sticky substances shall be removed before any cleaning procedure is carried out using an appropriate cleaning technique and chewing gum remover. Special care shall be utilized to ensure that all methods formulated agents and tools are not injurious to the surfaces being cleaned and redressed.
- All carpets, carpet tiles, mats and mat wells must be free from grit, dust and debris with no apparent stains. They must be clean and dry; all carpeted areas are to be cleaned by the manufacturer's recommended methods and recommended intervals.
- The pile in the main traffic areas must be evenly brushed and opened against the flow of incoming traffic.
- Care is to be exercised when staff is still on the premises. Wet floors should be sign-posted. Trailing cables and open sockets should be made safe.
- All cleaning methods used must be of a sufficient quality to meet these standards and to maintain any guarantees on the floor covering.

E. Cleaning of all toilets :-

- The required service standard is to be evident before start of activities at the Group centre and in addition should be brought up to this standard during the operating hours. Toilets must be cleaned thrice a day.
- All furniture and fittings must be free from debris, stains marks and dust. They must be clean and dry with no evidence of residual cleaning agents. All sanitaryware including showers, shower heads sinks, wash hand basins. WC bowls, seat cover, hinges, tops, undersides, rims, taps, overflows, outlets, chains, plugs, urinal, brushes, toilet roll holders, tiled surfaces, splash backs and vanity units must be

free from scum, grease, hair scale dust, soil spillages and removable stains. In addition, the surfaces should be disinfected.

- Floors should be cleaned to the same standard as the building's floors. In addition, there should be no evidence of scum, grease, hair, and scale and the floors must be disinfected.
- All Walls, skirting, dado-rails, coving, radiators, pipes, vents, grills, doors, doorframes, fittings and glass panels, windows frames and sills must be free from debris, marks, and dust. They must be clean and dry with no evidence of residual cleaning agents. In particular, they must be free from finger marks, verdigris stains, runs and cobwebs to full height. Walls, doors and cubicle partitions shall be washed by a disinfectant solution regularly.
- Mirrors must be clean and free from smears.
- Soap dispensers must be filled, operating correctly with clean nozzles the external surfaces must be clean and replaced as necessary.
- All toilets should be kept fully stocked with supplies and should be made available at all times.
- Towel holders dispensers must be clean, dry and free from dust, marks and smears with clean towels fitted. Hot air dryers must be clean, dry and free from dust, marks and smears.
- Bins must be emptied cleaned and dried inside and out , bins liners replaced where necessary and placed in their original locations. Liners must be used at all times.
- The department expects a holistic washroom supplies service. The Vendor shall provide options on the consolidation of existing and proposed washroom products.

F. Walls, Ceilings, Doors and Staircase:-

- All walls, skirting, dado-rails, coving, radiators, pipes, vents, grilles, doors, doorframes, fittings and glass panels, window frames and sills must be free from debris, marks, and dust. They must be clean and dry with no evidence of residual cleaning agents. In particular, they must be free from finger marks, verdigris stains, runs, and cobwebs to full height.
- All ceiling, ventilation diffusers and ceiling light fittings must be free from debris, marks, dust and cobwebs. They must be dry with no evidence of residual cleaning agents.
- Stairs including treads, risers, nosing, banisters, balustrades, handrails, ledges and protective wire guards where present must be free from dust, debris, stains and marks.
- Treads and risers are to be treated same as floors.
- Walls and high-level surfaces and fitting must be free from dust, cobwebs and marks to the full height.

G. Corridors:-

- All hard floor surfaces must be free from debris, clean, dry and from stains, marks and dust. There must be no evidence of any accumulation of slurry of soaps or residues of other cleaning agents. Floors must be safe and not slippery, some slight scuffing may be apparent, but the dressing must be complete and intact without evidence of powdering, discoloration or build up.
- All walls, skirting, dado-rails, coving, radiators, pipes vents, grilles, doors, doorframes, fittings and glass panels, window frames and sills must be free from debris, marks and dust. They must be clean free from finger marks verdigris stains, runs and cobwebs.

- All carpets, mats and mat wells must be free from grit, dust and debris with no apparent stains. They must be clean and dry.
- Stainless steel surfaces must be treated with an appropriate cleaning and polishing agent.

H. External Areas: -

- The Department requires the provision of a professionally managed cleaning service to the external areas of the buildings.
- The required service standard is to be evident before the start of activities and in addition should be brought up to this standard during the business day.
- Entrances, service areas, paving, paths, grounds and the outside premises must be maintained so that no graffiti, debris, litter cigarette ends, dirt or spillages are apparent after cleaning. Empty all waste bins and replace in their original locations.
- All areas protected by security, screening, netting, protective cages etc. shall have the protection removed temporarily to remove graffiti, debris, dirt dust, weeds and litter. The protection must be replaced to the original standards prior to invasion.
- The Bidder shall report any defects encountered during carrying out external area's maintenance tasks to the Department.

I. Periodic cleaning: -

In addition to the above the Bidder is required to carry out any periodic or deep clean activities not included in the routine cleaning activities to achieve the service standards. This can include but is not limited to deep cleaning and periodic cleaning activities of the communal and public areas and deep cleaning activities that require more frequent cleaning than routine cleaning including kitchens, mess, basement sump, basement drain and other areas as per the instruction of the Department.

J. Reactive Cleaning: -

- A reactive service is required to maintain the full and safe use of the facilities. Tasks can include but are not limited to responding to spillages, replenishing consumables, and monitoring the cleanliness of the sanitary facilities.
- Remove spills and treat to minimize damage to floor coverings and reduce the risk of staining. Use only approved specialist materials within the indicated timescales for the removal and treatment of spills.

4. Safety Guidelines: -

- The Bidder must know and follow their duties related to safety for all personnel. These guidelines are applicable to Bidders as well as subbidders deployed by them at the site.

- All Bidder workmen should be provided with a uniform by the Bidder and shall work within the premises of the Group Centre in their prescribed uniform.
- The Bidder shall ensure that no access (passages access to emergency apparatus exits) is blocked, unless so authorized by Group Centre's personnel beforehand.
- The Bidder shall provide prior information to the Group Centre's representative about any hazardous material being brought on the site and shall ensure security storage of such material.
- The Bidder must leave work areas in a clean, tidy, and safe condition at the end of each working period.
- The Bidder should ensure that their personnel do not chew tobacco, paan, gutkha, do not consume alcohol, do not smoke, and do not take drugs on site.
- All workmen of the Bidder or their sub-bidders must have valid identifications cards verified by the Group Centre's administration & shall display at all times during duty hours.

5 Payment Terms:

- The Department will make the consolidated payment for each person engaged by the agency against the bill raised by the agency every month.
- The agency shall submit original invoice along with necessary supporting documents such as attendance sheet, wage sheet, PF/GST paid receipt etc.

6 Penalty

Particulars	Penalty
Unavailability of staff:- In the event of contract personnel being on leave/absent, the contractor shall ensure suitable alternative arrangement to make up for such absence.	Failure to provide alternative staff immediately shall attract penalty @5% of monthly cost per day per person who is found missing/absent from the duty till the staff is available.

7. Timeline

The bidder shall provide staffs/manpower for performing the required service as per the scope of work mentioned in RFP within 3 weeks from the issue of Purchase/Work order.

8. Performance Bank Guarantee

The successful bidder is required to submit Performance Bank Guarantee (PBG) equivalent to 5% of the contract value defined in this RFP on or before signing of the subsequent contract typically within 15 days from the notification of LOI, unless specified to the contrary.

9. Dispute Resolution

1. The bids and any contract resulting there from shall be governed by and construed according to the Indian Laws.
2. All settlement of disputes or differences whatsoever, arising between the parties out of or in connection to the construction, meaning and operation or effect of this Offer or in the discharge of any obligation arising under this Offer (whether during the course of execution of the order or after completion and whether before or after termination, abandonment or breach of the Agreement) shall be resolved amicably between Department and the vendor's representative.
3. In case of failure to resolve the disputes and differences amicably within 30 days of the receipt of notice by the other party, then the same shall be resolved as follows:
 - i. Conciliation: - All disputes or differences whatsoever arising between the parties out of or relating to the construction, meaning, scope, operation or effect of this contract or the validity or the breach thereof shall be first settled by way of conciliation and failing which, by way of arbitration in accordance with the Rules of Arbitration of the Indian Council of Arbitration and the award made in pursuance thereof shall be binding on the parties.
 - ii. The dispute shall be first referred to the Development Commissioner for conciliation who shall conduct conciliation proceedings which will be held at Patna, Bihar.
 - iii. Arbitration: - In case the conciliation proceedings fail, the dispute shall be referred to the arbitration as per the Arbitration Act.
 - iv. All legal disputes will come under the sole jurisdiction of Patna, Bihar. The venue of the arbitration shall be Patna.
4. The Arbitral award shall be final and binding on both the parties.
5. Work under the contract shall be continued by the vendor during the arbitration proceedings unless otherwise directed in writing by Department unless the matter is such that the work cannot possibly be continued until the decision of the arbitrator is obtained. Save as those which are otherwise explicitly provided in the contract, no payment due, or payable by Department, to the vendor shall be withheld on account of the ongoing arbitration proceedings, if any, unless it is the subject matter, or one of the subject matters thereof.

10. Fraud or Corrupt Practices

1. The Bidders shall observe the highest standard of ethics during the Bidding Process and subsequent to the issue of the LOA and during the subsistence of the Agreement. Notwithstanding anything to the contrary contained in this RFP, or in LOA or the Agreement, the DEPARTMENT may reject a bid, withdraw the LOA, debar the bidder for a period of one year from participating in the future projects of the Department or terminate the Agreement, as the case may be without being liable in any manner whatsoever to the Bidder, if it determines that the Bidder has, directly or indirectly or through an agent, engaged in corrupt practice, fraudulent practice, coercive practice, undesirable practice or restrictive practices. In such an event, the DEPARTMENT shall, without prejudice to its any other rights or remedies, forfeit and appropriate the Bid Security or Performance Security as mutually agreed genuine pre- estimated compensation and damages payable to the

Authority for, inter alia, time, cost and effort of the Authority, in regard to the RFP, including consideration and evaluation of such Bidders Proposal.

2. Without prejudice to the rights of DEPARTMENT under Clause above and the rights and remedies which the DEPARTMENT may have under the LOI or the Agreement, if a Bidder, is found by the Authority to have directly or indirectly or through an agent, engaged or indulged in any corrupt practice, fraudulent practice, coercive practice, undesirable practice or restrictive practice during the Selection Process, or after the issue of the LOI or the execution of the Agreement, such Bidder shall not be eligible to participate in any tender or RFP issued by DEPARTMENT during a period of <1(one)year> from the date such Bidder, is found by DEPARTMENT to have directly or through an agent, engaged or indulged in any corrupt practice, fraudulent practice, coercive practice, undesirable practice or restrictive practice, as the case may be.

3. For the purposes of this Section, the following terms shall have the meaning here in after respectively assigned to them:

- a) "corrupt practice" means the offering, giving, receiving or soliciting of anything of value, pressurizing to influence the action of a public official in the process of tendering and execution of the project;
- b) "fraudulent practice" means aim is representation or omission of facts or disclosure of incomplete facts, in order to influence the Selection Process;
- c) "coercive practice" means impairing or harming or threatening to impairer harm, directly or indirectly, any persons or property to influence any person participation or action in the Selection Process;
- d) "undesirable practice" means (i) establishing contact with any person connected with or employed or engaged by Department with the objective of canvassing, lobbying or in any manner influencing or attempting to influence the Selection Process; or (ii) having a Conflict of Interest; and
- e) "restrictive practice" means forming a cartel or arriving at any understanding or arrangement among Bidders with the objective of restricting or manipulating a full and fair competition in the Selection process.

11. Termination & Blacklisting:

1. The Department may terminate this Agreement and Blacklist/Debar the vendor, in case of occurrence of any of the events specified below. In the event of such an occurrence, the First Party may give not less than 30 days written notice of termination to Second Party.
1. If the vendor is in material breach of its obligations pursuant to this Agreement and has not remedied the same within 30 days.
2. If the vendor becomes insolvent or goes into compulsory liquidation
3. If the vendor, in the judgement of Department, has engaged in corrupt or fraudulent practices in competing for or in executing the contract
4. If the vendor submits to Department a false statement which has material effect on the rights, obligations, or interests of the Department.
5. If the vendor places itself in position of conflict of interest or fails to disclose promptly any conflict of interest to the Department.
6. If the vendor fails to provide Quality services as envisaged under this Agreement.

7. Serious discrepancy and delay in delivery of services or the performance levels agreed upon, which might have an impact on the functioning of the Call Centre.
8. Failure of the vendor mobilize manpower, follow local laws, clumsy execution of work, and total disregard to public safety and its own employees.
9. Failure to abide by any lawful directions of the Department.

Note: - Blacklisting/Debarment of the vendor shall be natural consequence of the termination. The Blacklisting/Debarment shall be for such a period as may be specified by the Department.

Provided that before placing the vendor in the blacklist, with or without the termination of the contract, the Department shall issue a notice given 15 days of time to the vendor.

11.2 Penalties: - The Department may impose a suitable penalty of the vendor of the failure of such activities as mentioned above. Such penalties shall be deducted from the pending bills/bank guarantee of the vendor. However, the Department shall issue a notice given 15 days of time to the vendor before imposing such penalty.

11.3 Termination Payments: - These payments shall mean the amount of payment by either party to the other party upon termination. Upon termination of the contract, Department may encash and appropriate the performance security/bank guarantee etc. The Department may clear outstanding dues of the sub-vendors of the second party out of such encashment and/or from the pending bills of the second party. After clearing such liabilities, any valid dues of the second party may be paid thereafter.

11.4 Blacklisting without termination: - The Department may blacklist the vendor without terminating the contract for any of the failures or acts of commissions or omissions under this Agreement

11.5 Foreclosure with Mutual consent: -

1. Without prejudices to any provisions of this agreement, Department and the vendor may foreclose this agreement by mutual consent in circumstances which does not constitute either party's default without any liability or consequential future liability for either party.
2. Should a Party intend to foreclose this Agreement by mutual consent, the intending Party shall issue a notice to the other Party and upon issuance of such notice, the other Party may within 15 days from receipt of such notice either agree to such foreclosure or raise objection(s) to the same by intimating either of the two possible positions to the intending Party in writing.
3. In either case of the other Party agreeing to the proposed foreclosure or otherwise, the Parties may negotiate the proposed foreclosure and sign a Supplementary Agreement for foreclosure to the main Contract Agreement within 30 (thirty) days of the date agreeing by both Parties. Foreclosure shall not come into effect unless and otherwise Supplementary Agreement is signed.
4. Any attempt or endeavour for foreclosure by mutual agreement shall be without prejudice to the rights and obligations of the Parties herein and the factum of such an attempt or exercise shall not stop either of the Parties from discharging their contractual obligations under this Agreement.
5. For the avoidance of doubt, it is clarified that such foreclosure will be without prejudice to the Vendor and shall not affect the Vendor in any way if it wishes to bid in future projects of the Department.

11.6 Transition and Exit Plan:

The vendor shall ensure that the transition is smooth in case the contract is terminated or foreclosed with

mutual consent. In addition to the cancellation of contract, Department reserves the right to charge appropriate penalties and liquidated damages from the selected agency. Further: -

- 1 All risks during transition stage shall be properly documented to ensure smooth transition without any service disruption.
- 2 The transition plan along with the period shall be mutually agreed between vendor and Department when the situation occurs. Vendor shall be released from the project once successful transition is done meeting the parameters defined for the successful transition.

12. Instructions to the Bidders

12.1 General

- I. While every effort has been made to provide comprehensive and accurate background information and requirements and specifications, Bidders must form their own conclusions about the solution needed to meet the requirements. Bidders and recipients of this RFP may wish to consult their own legal advisers in relation to this RFP. All information supplied by Bidders may be treated as contractually binding on the Bidders, on successful award of the assignment by the Department on the basis of this RFP.
- II. No commitment of any kind, contractual or otherwise shall exist unless and until a formal written contract has been executed by or on behalf of the Department. Any notification of preferred bidder status by the Department shall not give rise to any enforceable rights by the Bidder. The Department may cancel this public procurement at any time prior to a formal written contract being executed by or on behalf of the Department.
- III. This RFP supersedes and replaces any previous public documentation & communications, and Bidders should place no reliance on such communications.

12.2 Compliant Proposals / Completeness of Response

1. Bidders are advised to study all instructions, forms, terms, requirements and other information in the RFP documents carefully. Submission of the bid shall be deemed to have been done after careful study and examination of the RFP document with full understanding of its implications.
2. Failure to comply with the requirements of this paragraph may render the Proposal non-compliant and the Proposal may be rejected. Bidders must:
3. Include all documentation specified in this RFP;
4. Follow the format of this RFP and respond to each element in the order as set out in this RFP
5. Comply with all requirements as set out within this RFP.

12.3 Key Requirements of the Bid

12.3.1 Right to Terminate the Process

I. The Department may terminate the RFP process at any time and without assigning any reason. The Department makes no commitments, express or implied, that this process will result in a business transaction with anyone.

II. This RFP does not constitute an offer by the Department. The bidder's participation in this process may result the Department selecting the bidder to engage towards execution of the contract.

12.3.2 RFP Document Fees

RFP document can be downloaded from the website www.eproc2.bihar.gov.in after paying tender fee of Rs. 5000/- and processing fee of Rs. 590 /. The fees will have to be paid through online on the above mentioned website. Proposals received without or with inadequate RFP Document fees shall be rejected.

12.3.3 Earnest Money Deposit (EMD)

1. Bidders shall submit, along with their Bids, EMD of INR 2,00,000 only in the form of Bank Guarantee issued by any Scheduled bank.
2. The EMD shall be exempted for MSME subject to the submission of MSME certificate.
3. The bid / proposal submitted without EMD, mentioned above, will be summarily rejected.
4. The EMD may be forfeited:
 - a) If a bidder withdraws its bid during the period of bid validity.
 - b) In case of a successful bidder, if the bidder fails to sign the contract in accordance with this RFP.

12.3.4 Submission of Proposals

- a) The bidders should submit their responses as per the format given in this RFP in the following manner
 - 1) Technical Proposal
 - 2) Commercial Proposal
- b) Please Note that prices should not be indicated in the Technical Proposal but should only be indicated in the Commercial Proposal.
- c) All the pages of the proposal must be sequentially numbered and must contain the list of contents with page numbers. Any deficiency in the documentation may result in the rejection of the Bid.
- d) The bids shall be uploaded through <http://eproc2.bihar.gov.in> as per the instructions available on the website

12.4 Preparation and Submission of Proposal

12.4.1 Proposal Preparation Costs

- a) The bidder shall be responsible for all costs incurred in connection with participation in the RFP process, including, but not limited to, costs incurred in conduct of informative and other diligence activities, participation in meetings/discussions/presentations, preparation of proposal, in providing any additional information required by the Department to facilitate the evaluation process, and in negotiating a definitive contract or all such activities related to the bid process.

- b) The Department will in no case be responsible or liable for those costs, regardless of the conduct or outcome of the bidding process.

12.4.2 Language

The Proposal should be filled by the Bidder in English language only. If any supporting documents submitted are in any language other than English, translation of the same in English language is to be duly attested by the Bidders. For purposes of interpretation of the Proposal, the English translation shall govern.

12.4.3 Tender Opening

- I. The Proposals submitted up to due date and time will be opened at a date to be notified by a committee authorized by the Department, in the presence of such of those Bidders or their representatives who may be present at the time of opening.
- II. The representatives of the bidders should be advised to carry the identity card or a letter of authority from the tendering firms to identify their bonafides for attending the opening of the proposal.

12.4.4 Tender Validity

The offer submitted by the Bidders should be valid for minimum period of 180 days from the date of submission of Tender.

12.4.5 Tender Evaluation for responsiveness

- I. Initial Bid scrutiny will be held, and incomplete details as given below will be treated as non-responsive, if Proposals:
 - A. Are not submitted in as specified in the RFP document
 - B. Are found with suppression of details
 - C. With incomplete information, subjective, conditional offers and partial offers submitted
 - D. Submitted without the documents requested in the checklist
 - E. Have non-compliance of any of the clauses stipulated in the RFP
 - F. With lesser validity period
- II. All responsive Bids will be considered for further processing. The Department will prepare a list of responsive bidders, who comply with all the Terms and Conditions of the Tender. All eligible bids will be considered for further evaluation by a committee according to the Evaluation process defined in this RFP document. The decision of the Committee will be final in this regard.

13. Criteria for Evaluation

- Pre-Qualification evaluation: The Bidder shall be examined prima facie to substantiate the compliance with the Bidder's eligibility criteria as set out for this project in terms of organizational,

financial and technical experience etc. The bid will be rejected, in case it does not meet the Pre-qualification criteria. The next stage of the evaluation will be an assessment of the technical bid.

- Technical evaluation: Based on the short-listing of the pre-qualified Bidders, the Committee will proceed to a detailed evaluation of the Technical Bids of such pre-qualified Bidders in order to determine whether they are substantially responsive to the requirements set forth in the Request for Proposal. In order to reach such a determination, Department of Prohibition, Excise and Registration will examine the information supplied by the Bidders and shall evaluate the same as per the evaluation criteria specified in this RFP.
- Department of Prohibition, Excise and Registration shall review the submitted proposal and a Proposal shall be rejected at this stage if it does not respond to important aspects of the RFP or if it fails to comply with the technical requirements;
- Proposal may be rejected at any stage of the evaluation if it is found that the company has provided misleading information or has been black listed by a central or any state government or has indulged in any malpractice/ unethical practice and has not honored contractual obligation elsewhere;
- The Bidders may be asked to make presentation on technical and operational aspect of the bid, based on the discretion of the Technical Committee.
- After the technical evaluation is completed and approved, Department of Prohibition, Excise and Registration shall inform the Bidders who have submitted proposals, the detailed compliance of their Technical Proposals, and shall notify those Bidders whose Proposals did not meet the minimum technical criterion or were considered non-responsive to the RFP and Scope of Services, that their Financial Proposals will be returned unopened after completing the evaluation process. Department of Prohibition, Excise and Registration shall simultaneously notify in writing to the Bidders that have complied with the Technical Criterion specified in the RFP the date, time and location for opening the Financial Proposals.
- Evaluators of Technical Proposals shall have no access to the Financial Proposals until the technical evaluation is concluded and the same is approved by the appropriate Committee.
- Please note that no conditional bid will be entertained.
- Substantially Responsive Bid: A substantially responsive bid is one, which confirms to the requirements, terms, conditions and specifications of the RFP document without material deviation. A material deviation is one which affects in any substantial way the functionality, scope, quality, or performance of the deliverables, or which limits in any substantial way, inconsistent with the RFP document, Department of Department of Prohibition, Excise and Registration's rights or the Bidder's obligations for, performance of the Project and the rectification of which deviation would affect unfairly the competitive position of other Bidders presenting substantially responsive

proposals; and Technical evaluation committee may recommend waiver of any minor informality or non-conformity or irregularity in a proposal, which does not constitute a material deviation, provided such a waiver does not prejudice or affect the relative ranking of any Bidder.

13.1 Pre-Qualification Criteria

S No	Requirement	Criteria	Documents Required
1	Legal Entity	The Bidder should be a company registered under Indian Companies Act 1956/LLP Act 2008 and should have been operating for the last 3 years in India.	Certificate of Incorporation/LLP Incorporation Certificate
2	Sub-Contract/Consortiums	Any form of JV consortiums/ Subcontracting is not allowed.	Self-Declaration from the bidder
3	GST certificate	The bidder should be GST registered	GST Registration certificate
4	Turnover	Bidder's average annual turnover of last three financial years as of 31 st March 2022 must not be less than INR 75 lakhs.	Last three years audited financial statements. Bidder must also submit CA certificate certifying turnover for last three years.
5	Not Blacklisted	The agency should not be blacklisted by any Govt of India	Self-Declaration
6	Functional Branch Office	The bidder should have a functional Branch office in Patna.	Copy of rent agreement/ownership paper and registration under Bihar Shops and Establishment act 1953 has to be enclosed.
7	ISO Certificate	The bidder shall submit valid ISO certificate	ISO Certificate

13.2 General EvaluationElaboration

An evaluation committee so constituted by the Departmentwill evaluate the bids as per the following pattern:

- 1 Conditional bids shall be summarilyrejected.
- 2 Evaluation committee will examine the bids to determine whether they are complete, whether any computational errors have been made, and whether the bids are generally in order.
- 3 Arithmetical errors will be rectified on the following basis: If there is a discrepancy between the unit price and the total price that is obtained by multiplying the unit price and quantity, the unit price shall prevail and the total price shall be corrected. If the Bidder does not accept the correction of the errors, his bid will be rejected. If there is a discrepancy between words and figures, the amount in words will prevail.
- 4 The Tenderer is expected to submit all documents along with General Bid for General Evaluation, in case document is not provided or provided but not a valid document, then the same parameter shall not be considered for marking for the specific Bidder. It is the Bidder's responsibility that all documents pertaining to every parameter of "General Evaluation Elaboration" needs to be submitted and tagged/referenced to the evaluationparameter.
- 5 The Tenderer may conduct clarification meetings with each or any bidder to discuss any matters, technical or otherwise.
- 6 Further, the scope of the evaluation committee also covers taking of any decision with regard to the RFP, execution/ implementation of the project including managementperiod.

13.3 Technical BidEvaluation

- 1) As part of the Technical Evaluation, in the first step, the Technical Bids will be examined to ascertain responsiveness of the technical bids with the General Terms and Conditions of the Contract and Technical Requirements & Scope of Work as defined in the RFP.
- 2) In the second step, the Technical Evaluation of the responses of the Bidders will be evaluated, based on technical criteria set in this Bid Document.
- 3) The Technical evaluation shallinvolve:
 - a) Document-based evaluation of the TechnicalBids
 - b) Technical discussions with the key personnel proposed for the Project in the TechnicalBid
- 4) The Purchaser will open the Commercial Bids of only Technically Qualified Bidders (TQB), in the

presence of the representatives of the Technically Qualified Bidders who choose to attend, at the time, date and place, as decided by the Purchaser.

13.4 Technical Evaluation Criteria: -

S No	Requirement	Criteria	Documents Required	Points
1	The agency must have minimum 3 years of experience in providing housekeeping services to Govt organizations, PSUs, or large corporate offices.	Work order/Completion certification submitted for: - For 3-4 years: 30 Or For 5-7 years: 35 Or For 8 or more years: 40	Work Order/Completion Certificate	40
2	Minimum work executed for an amount of INR 20 Lakhs in the last two financial years as of 31 st March 2022.	Single Work order/Completion certification submitted worth: - For INR 20 lakhs- 22 lakhs: 25 points Or For INR 23 Lakhs or more: 30 points	Work Order/Completion Certificate	30
3	The bidder should have minimum 60 manpower on the bidder's muster roll.	For 60 – 70 manpower: 25 points Or	Latest challan of EPF and ESIC should be enclosed.	30

		For more than 70 manpower: 30 points		
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13.5 Commercial Bid Evaluation

- a) The Financial Bids of technically qualified bidders will be opened on the prescribed date in the presence of bidder representatives.
- b) Only fixed price financial bids indicating total prices for all the deliverables and services specified in this bid document will be considered.
- c) The bid price will include all taxes and levies and shall be in Indian Rupees and mentioned separately.
- d) Any conditional bid would be rejected.
- e) Errors & Rectification: Arithmetical errors will be rectified on the following basis: "If there is a discrepancy between the unit price and the total price that is obtained by multiplying the unit price and quantity, the unit price shall prevail and the total price shall be corrected. If there is a discrepancy between words and figures, the amount in words will prevail".
- f) If there is no price quoted for certain material or service, the bid shall be declared as disqualified.
- g) The Total Bid Price, as computed by the Purchaser shall be used for the purpose of commercial evaluation of bids.

13.6 Award Criteria

The Contract will be awarded on Lowest cost Method. The bidder quoting the lowest value will be awarded the Job. However, it will be on the discrimination of the department to assign the job to various bidders on the Lowest rate.

13.7 Right to Accept Any Proposal and to Reject Any or All Proposal(s)

The Department reserves the right to accept or reject any proposal, and to annul the tendering process / Public procurement process and reject all proposals at any time prior to award of contract, without thereby incurring any liability to the affected bidder or bidders or any obligation to inform the affected bidder or bidders of the grounds for the Department action.

13.8 Contract Finalization and Award

- a. The Department shall reserve the right to negotiate with the bidder(s) whose proposal has been most responsive. On this basis the draft contract agreement would be finalized for award & signing.
- b. The Department may also like to reduce or increase the quantity of any item in the Scope of Work defined in the RFP. Accordingly, total contract value may change on the basis of the rates defined in the financial proposal.

13.9 Signing of Contract

After the Department notifies the successful bidder that its proposal has been accepted, the

Department shall enter into a contract, incorporating all clauses, pre-bid clarifications and the proposal of the bidder between the Department and the successful bidder. The Draft Legal Agreement is provided as a separate document as a template.

13.10 Failure to Agree with the Terms and Conditions of the RFP

- i) Failure of the successful bidder to agree with the Draft Legal Agreement and Terms & Conditions of the RFP shall constitute sufficient grounds for the annulment of the award, in which event the Department may award the contract to the next best value bidder or call for new proposals from the interested bidders.
- ii) In such a case, the Department shall invoke the PBG of the most responsive bidder.

14 Annexure

Annexure I: TECHNICAL BID TEMPLATES

The bidders are expected to respond to the RFP using the forms given in this section and all documents supporting Technical Evaluation Criteria.

Technical Proposal shall comprise of following forms:

Forms to be used in Technical Proposal:

Form 1: Undertaking on Total Responsibility

Form 2: Particulars of the Bidder

Form 3: Bank Guarantee for Earnest Money Deposit

Form 4: Format for Affidavit

Annexure II: FINANCIAL PROPOSAL TEMPLATE

Forms to be used in Commercial Proposal

Form 1: Financial Proposal

Form 2: Performance Bank Guarantee

Form 1: Undertaking on Total Responsibility

No. Date:

To:

Dear Sir,

Sub: Self certificate regarding Total Responsibility

This is to certify that we undertake total responsibility for the providing housekeeping services, as per the requirements of the RFP.

Thanking you,

Yours faithfully

(Signature of the Authorized signatory of the Bidding Organisation)

Name :

Designation :

Date :

Time :

Seal :

Business Address:

Form 2:Particulars of the Bidder

Details of the Bidder(Company)		
1.	Name of the Bidder	
2.	Address of the Bidder	
3.	Status of the Company (Public Ltd/Pvt. Ltd)	
4.	Details of Incorporation of the Company	
7.	Valid GST no.	
8.	Permanent Account Number(PAN)	
9.	Name & Designation of the contact person to whom all references shall be made regarding this tender	
10.	Telephone No. (with STD Code)	
11.	E-Mail of the contact person:	
12	Fax no (with STD code)	

Form 3: Bank Guarantee for Earnest Money Deposit

To,

<Name>

<Designation>

<Address>

<Phone Nos.>

<Fax Nos.>

<email id>

Whereas <Name of the bidder> (hereinafter called 'the Bidder') has submitted the bid for Submission of RFP #<RFP Number> dated<Date> for <Name of the assignment> (hereinafter called "the Bid") to the department

Know all Men by these presents that we <> having our office at <Address>(hereinafter called "the Bank") are bound unto the department (hereinafter called "the Purchaser") in the sum of Rs. <Amount in figures>(Rupees<Amount in words> only) for which payment well and truly to be made to the said Purchaser, the Bank binds itself, its successors and assigns by these presents. Sealed with the Common Seal of the said Bank this <Date>

The conditions of this obligation are:

- 1) If the Bidder having its bid withdrawn during the period of bid validity specified by the Bidder on the Bid Form; or
- 2) If the Bidder, having been notified of the acceptance of its bid by the Purchaser during the period of validity of bid

- a) Withdraws his participation from the bid during the period of validity of bid document; or
- b) Fails or refuses to participate in the subsequent Tender process after having been short listed;

We undertake to pay to the Purchaser up to the above amount upon receipt of its first written demand, without the Purchaser having to substantiate its demand, provided that in its demand the Purchaser will note that the amount claimed by it is due to it owing to the occurrence of one or both of the two conditions, specifying the occurred condition or conditions.

FORM 4 :FORMAT FOR AFFIDAVIT

A F F I D A V I T

UNDERTAKING REGARDING GENUINENESS OF DOCUMENTS

(On Non-Judicial Stamp Paper of RS 100/-)

I/We, _____, Partner/Director/Legal
Attorney/Accredited Representative of M/s. _____ solemnly declare that:

1. I/We are submitting Tender for the work _____
_____ against Tender No. _____
2. All information furnished by us in respect of fulfillment of eligibility criteria and qualification information of this Tender is complete, correct and true.
3. All documents/credentials submitted along with this Tender are genuine, authentic, true and valid.
4. If it is found at any point of time that our documents are not genuine then in that case our tender will be rejected, earnest money deposited by us will be forfeited and we will be debarred from participating in further/future tenders and/or any action as deemed fit by Department may be taken against us, including termination of the contract, forfeiture of all dues including Earnest Money / Security deposit and banning/delisting of our entity and all related persons etc.

5. I/We on behalf of.....(Name of the Agency) do hereby affirm and undertake that we have carefully read and understood the whole tender documents and will unconditionally abide by the terms and conditions as given in the above mentioned RFP.

SIGNATURE OF THE BIDDER WITH SEAL

Dated

FINANCIAL BID

Form 1: Financial Proposal

S.No	Item	Unit Rate (INR)	Applicable Taxes (INR)	Total Amount (INR)
1	Total wages per person per month as per scope of work mentioned in RFP *Staff will work in shifts	1		
Total Cost including GST (INR)				

Note: -

- 1) The financial proposal shall include all costs associated with the scope of work. The Department shall not bear any cost other than the total cost mentioned in the financial proposal.
- 2) Statutory Deduction, if applicable, shall be deducted at source from payment to the selected bidder as per the law in force at the time of execution of the contract.
- 3) The agency will be required to provide approximately 60 staffs across the 3 Group Centres in 2 shifts (morning/evening) as per the requirement of the Department.
- 4) All staffs should be well trained and must comply to the semi-skilled category.
- 5) The cost of all consumables etc as per scope of work will have to be provided by the agency at their own cost and have to be built in the above quote.

Form 2: Performance Bank Guarantee

PERFORMANCE SECURITY:

<Name>
<Designation>
<Address>
<Phone Nos.>
<Fax Nos.>
<email id>

Whereas, <name of the supplier and address>(hereinafter called “the bidder”) has undertaken, in pursuance of contract no. <Insert Contract No.> dated. <Date> to provide Implementation services for <name of the assignment> to the department (hereinafter called “the beneficiary”)

And whereas it has been stipulated by in the said contract that the bidder shall furnish you with a bank guarantee by a recognized bank for the sum specified therein as security for compliance with its obligations in accordance with the contract;

And whereas we, **<Name of Bank>** a banking company incorporated and having its head /registered office at <Address of Registered Office> and having one of its office at <Address of Local Office>have agreed to give the supplier such a bank guarantee.

Now, therefore, we hereby affirm that we are guarantors and responsible to you, on behalf of the supplier, up to a total of **Rs.<Insert Value>(Rupees <Insert Value in Words> only)** and we undertake to pay you, upon your first written demand declaring the supplier to be in default under the contract and without cavil or argument, any sum or sums within the limits of **Rs.<Insert Value>(Rupees<Insert Value in Words> only)** as aforesaid, without your needing to prove or to show grounds or reasons for your demand or the sum specified therein.

We hereby waive the necessity of your demanding the said debt from the bidder before presenting us with the demand.

We further agree that no change or addition to or other modification of the terms of the contract to be performed there under or of any of the contract documents which may be made between you and the Bidder shall in any way release us from any liability under this guarantee and we hereby waive notice of any such change, addition or modification.

This Guarantee shall be valid until <Insert Date>)

Notwithstanding anything contained herein:

- I. Our liability under this bank guarantee shall not exceed **Rs.<Insert Value>(Rupees <Insert Value in Words> only).**
- II. This bank guarantee shall be valid up to *<Insert Expiry Date>*)

It is condition of our liability for payment of the guaranteed amount or any part thereof arising under this bank guarantee that we receive a valid written claim or demand for payment under this bank guarantee on or before *<Insert Expiry Date>*) failing which our liability under the guarantee will automatically cease